

KMVTECH EDUCATION

INL1 · Module 5

Jurisdiction and immunity

Lesson: Bases and immunities

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Jurisdiction is the authority of a State to prescribe, adjudicate and enforce rules. Bases include territory, nationality, protective principle, passive personality and universality (for certain international crimes).

Sovereign immunity protects foreign States and their property from domestic courts, subject to exceptions (commercial activity, territorial torts, waiver). Diplomatic and consular immunities rest on the Vienna Conventions.

Universal jurisdiction for core international crimes is recognised but remains controversial in practice and scope.

- Head-of-State and foreign-official immunity before foreign courts is distinct from international criminal court jurisdiction.

2. DETAILED RULES AND APPLICATION

Example: a Ugandan court considering a claim against a foreign State must first decide whether immunity applies before reaching the merits. Commercial exceptions are the most common practical opening.

Immunity is a procedural bar; it does not erase the underlying obligation. Waiver and treaty exceptions matter.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's courts apply common-law and statutory immunity principles informed by international custom. Diplomatic premises and bags receive special protection under the Vienna Convention on Diplomatic Relations.

Exam trap: confusing State immunity with diplomatic immunity, or assuming universal jurisdiction is unlimited for every serious crime.

Method: (1) identify the defendant and act, (2) select the jurisdictional base, (3) test any immunity claim and exception, (4) note enforcement limits.

Links forward to State responsibility (international claim) versus domestic suit (immunity issues).

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Name five bases of jurisdiction.
2. What is the commercial-activity exception?
3. Distinguish State immunity from diplomatic immunity.
4. When may universal jurisdiction apply?
5. Does immunity erase the underlying duty?
6. Why is the Vienna Convention on Diplomatic Relations important?

Exam tip: Jurisdiction first, then immunity screen.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.